Nature and Definition of Tort

Tort - French term which means 'wrong' in English.

Origin of 'tort'- **Tortum** (Latin word meaning 'twist')

Everyone is expected to behave in a straightforward manner and when one deviates from this straight path into crooked ways, he has committed a tort. Hence tort is a conduct which is twisted or crooked and not straight.

We in India majorly follow English tort law and most of the case laws we will study would also be English cases because In India there is very little tort litigation, the reasons might be that people are not aware of their rights and even if they are aware, people would rarely want to be involved in a court case in India until the matter is really serious.

Definition of Tort:

Liquidated damages mean compensation which has been previously determined or agreed by the parties.

Salmond - "It is a civil wrong for which the remedy is a common law action for unliquidated damages and which is not exclusively the breach of a contract or the breach of a trust or other merely equitable obligation.".

Winfield - "Tortious Liability arises from the breach of a duty primarily fixed by the law: this duty is towards persons generally and its breach is redressable by an action for unliquidated damages."

Fraser - "It is an infringement of a right in rem of a private individual giving a right of compensation at the suit of the Injured party."

The basic idea which is indicated by these definitions is Firstly, tort is a civil wrong, and secondly, every civil wrong is not a tort. There are other civil wrongs also, the important of which are a breach of contract and breach of trust.

The definition of The Limitation Act, 1963 is also residuary

Section 2 (m), the Limitation Act, 1963 "Tort means a civil wrang which is not exclusively a breach of contract or breach of trust.

Tort v. Torts

The Law of Tort, i.e., Is every wrongful act, for which there is no justification or excuse to be treated as a tort; (Winfield)

Ex. if I injure my neighbour, he can sue me in tort whether the wrong happens to have particular name like assault, battery, deceit, slander, or whether it has no special title at all, and I shall be liable if I cannot prove lawful justification.

The Law of Torts, consisting only of a number of specific wrongs beyond which the liability under this branch of law cannot arise, **(Salmond, Pigeon-Hole theory)**

Ex. If I commit an act and my act cannot be put into any of the pre decided torts then I have committed no tort. If there is no pigeon-hole in which the plaintiff's case could fit in, the defendant has committed no tort.

Classification of torts - Based on fault

• those involving **Intention**, (Assault, Battery, Trespass etc.)
• those involving **negligence,** (Advertent Negligence: Rash Driving; Inadvertent Negligence: Doctor not doing surgery properly)

• and the wrongs of **strict liability**, we have **absolute liability** also in India (inherently dangerous activities)

Tort v. Crime v. Breach of Contract v. Trust

• **It is a Breach of Duty:** The law imposes a duty to respect the legal rights vested in the members of the society and the person making a breach of that duty is said to have done the wrongful act.

• '**Crime'** is a wrongful act, which results from the breach of a duty recognized by criminal law, it is a public wrong, which occurs on breach of Public duties,

•**'Breach of contract'** is the non-performance of a duty undertaken by a party to a contract,

• **Tort'** is a breach of duty recognized under the law of torts, It is a Private wrong, which occurs on breach of private duties.

• **It is a private wrong** which means action against the 'tort-feasor' or 'wrongdoer' is brought by the injured party

(**In Crimes** the wrongdoer is prosecuted by the state, it is a public wrong)

• Tort is a private wrong that contravenes the legal right of an individual or a group.

(**In Contracts** also the same happens but the duty which is breached in contract is imposed by the contract and that too only on the parties to contract, in tort the breach is of a duty which is imposed by law on public in general)

• It is a Civil wrong and tort litigation is compoundable which means that the complainant can withdraw the suit filed by him. (You cannot do that in **crimes**)

• The damages in torts are unliquidated which means they are not pre decided.

(**In Breach of Trust** the beneficiary can claim such compensation which depends upon the loss that the trust property has suffered. The number of damages being ascertainable before the beneficiary brings the action, the damages, in the case of a breach of trust, are liquidated)

Overlap between areas

There are various wrongs which find their place both under criminal law and law of torts, some examples of such wrongs are Assault, Defamation, Negligence, Conspiracy and Nuisance. The definition of anyone of these wrongs may be different under civil and criminal laws. Also, the rules applicable in case of tort are generally different from those in the case of crime. For example, in the case of tortious liability for the wrong of defamation, truth is in itself a defence, whereas in an action for the offence of defamation, the defence of truth can be taken if the publication was made for public good.

General principles of tortious liability

Essentials of a Tort

Tort is an umbrella term, and different diverse wrongs are included in it which originated and developed independently. So, there is no universal definition for all torts.

The most common essentials for tortious liability are:

1**. Act or omission** on part of defendant
2. Such Act or omission leading to **injury** i.e., violation of a legal right

Important tort law principles which we will look into today:

- **Injuria sine damnum**

- **damnum sine injuria**

- **Vicarious Liability**

Injuria sine damnum and Damnum sine injuria

Injuria means infringement of a legal right

Damnum means substantial harm, loss or damage in respect of money, comfort, health or the like

Sine means without

Injuria sine damnum: When there has been injuria or the violation of a legal right and the same has not been coupled with a damnum or harm to the plaintiff, the plaintiff can still go to the court of law because no Violation of a legal right should go unredressed.

Ashby v. White - Plaintiff was Voter who was not allowed to vote by defendant the candidate plaintiff wanted to vote for won nonetheless, court held defendant as liable:

Bhim Singh v. State of J&K. An MLA was wrongfully detained by the police because of which he could not attend assembly session for which court awarded Rs 50,000 in damages)

Damnum sine injuria: When there is no violation of a legal right, no action can lie in a court of law even though the defendant's act has caused some loss or harm or damage to the plaintiff.

Gloucester Grammar School Case - the defendant, a schoolmaster set up a rival school to that of the plaintiffs. Because of the competition. the plaintiffs had to reduce their fees from 40 pence to 12 pence per scholar per quarter It was held that the plaintiffs had no remedy for the loss thus suffered by them

Mogul Steamship co. v. McGregor Grow and Co.-Similar facts as previous case where many steamship companies drove the plaintiff out of business, court held no wrong has been committed

Mayor of Bradford Corporation v. Pickles - The House of Lords went a step further and held that even if the harm to the plaintiff has been caused maliciously, no action can lie for the same unless the plaintiff can prove that he has suffered injuria

Town Area Committee v. Prabhu Dayal - The plaintiff made certain construction without complying with the provisions of the U.P. Municipalities Act. The defendants demolished the construction. The plaintiff sued the defendants contending that the demolition was illegal as some of the officers of the Town Area Committee were acting maliciously in getting the construction demolished. The Allahabad High Court held that the demolition of a building illegally constructed was perfectly lawful. The Court did not investigate the question whether the act was done maliciously or not as the same was considered to be irrelevant.

Vicarious Liability

The general rule of tort liability is that the person who causes damage must pay compensation. In certain cases, however, liability can arise on third parties also.

respondeat superior which means 'let the principal be liable

qui facit per alium facit per se which means 'he who does an act through another is deemed in law to do it himself

If there is some relationship between defendant and third party then law can extend liability to that third party.

For Example:

Partnership firms, where one partner could be held liable for default of another partner

Master servant relationship where master could be held liable for acts of his servant.

Principal Agent relationship where principal is liable for the tort of his agents

There must be a relationship (master servant, principal agent etc)

Difference Between Servant and Independent Contractor

Servant is under employment contract; independent contractor is under a contract for a service. If a servant does a wrongful act in the course of his employment, the master is liable for it but the master is not liable for the tort of independent contractor.

Now the question arises how to distinguish whether it is master servant relationship or not.

Servant is under Direction and control of the master

A servant is an agent who is subject to the control and supervision of his employer regarding the manner in which the work is to be done. An independent contractor is not subject to any such control. He undertakes to do certain work and regarding the manner in which the work is to be done. He is his own master and exercises his own discretion.

To an independent contractor the master can order or require what is to be done, while in the case of a servant he cannot only order or require what is to be done, but how it shall be done.

B. Govindarajulu v. M.L.A. Govindaraja Mudaliar

Gave car to mechanic for repairs, mechanic after repairs took it for a test drive and met with an accident. Mechanic tried to share blame of accident on the owner by extending liability to him as the relationship between him and the owner is master servant relationship. Court held that the relationship of the mechanic was not of a servant but of an independent contractor so liability is his own.

Wrongful act must be related to the relationship

State bank of India v. Shyama Devi

An employee of the bank who also acted in personal capacity misappropriated funds of an account holder in the bank under the pretext of depositing money in the bank, as the employee did all this in personal capacity and not in the capacity of an employee of the bank. the liability of the misappropriation was not extended to the bank.

The wrong must be done in course of employment

Beard v. London Omnibus Co.

While driver was having dinner, conductor drove the bus to turn it around, and while driving it caused an accident. In this case the master was not held liable because the act the conductor was doing was not under his course of employment as he was not authorized to drive the bus.

Limpus v. London Omnibus Co.

In this case the drivers had specific instructions in written to not race or obstruct the path of other buses, but the driver did that anyways and caused an accident the employer was liable for the ensuing accident despite written instructions to the driver to exercise care. The employer was liable because the injury resulted from an act done by the driver in the course of his service and for his master's purposes: it was not done by the servant for his own purposes, but for his master's purposes

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General defences (Torts)

The defendant uses the defences as an excuse to absolve himself from the liability.

If a tort is committed and all the ingredients of the tor fulfilled then proving any of the following defences can remove the liability from the wrongdoer.

- Volenti Non-Fit Injuria

- Plaintiff is the wrongdoer
- Inevitable accident
- Vis Major i.e., Act of God
- Private defence
- Statutory authority
- Mistake
- Necessity

Volenti non fit injuria or the defense of 'Consent’

‘Volenti non fit injuria' literally translates to "to one who volunteers, no harm is done" which means the plaintiff has waived his rights and now he can’t complain. He has consented to suffer harm.

The consent could be express or implied.

Hall v. Brooklands Auto Racing Club
The plaintiff was a spectator of a car racing event and the track on which the race was going on belonged to the defendant. During the race two cars collided and out of which was thrown among the people who were watching the race. The plaintiff was injured

The court held that the plaintiff knowingly undertook the risk of watching the race. It is a type of injury which could be foreseen by anyone watching the event. The defendant was not liable in this case.

Padmavati v. Dugganaika, the driver of the jeep took the jeep to fill petrol in it. Two strangers took a lift in the jeep. The jeep got toppled due to some problem in the right wheel. The two strangers who took lift were thrown out of the jeep and they suffered some injuries leading to the death of one person Court Held that the master of the driver could not be made liable as it was a case of a sheer accident and the strangers had voluntarily got into the vehicle.

The consent must be Free and should not be taken under any compulsion or by fraud. Consent must be for the act done by defendant and not some other act. If the person is unable to give consent the guardians consent is sufficient.

R v. Williams, the defendant was a singing coach. He told one of his pupils that he was performing an act to open her air passages to improve her singing but he was actually having sexual intercourse with her. It was held that her consent was vitiated by fraud. This case has been used to illustrate the validity of a consent which has been obtained by unfair means

Lakshmi Rajan v. Malar Hospital, a 40-year-old married woman noticed a lump in her breast but this pain does not affect her uterus. After the operation, she saw that her uterus has been removed without any justification. The hospital authorities were liable for this act. The patient's consent was taken for the operation not for removing the uterus.

"Scienti non fit injuria" - Knowledge of risk is not equal to consent of risk.

Smith v. Charles Baker and Sons, the plaintiff was an employer to work on a drill for the purpose of cutting rocks. Some stones were being conveyed from one side to another using crane surpassing his head. He was busy at work and suddenly a stone fell on his head causing injuries. The defendants were negligent as they did not inform him. The court held that mere knowledge of risk does not mean that he has consented to risk, so, the defendants were liable for this. The maxim volenti non fit injuria did not apply

The Defendant should not be negligent himself, like in the above case if the workman ignores the instructions of his employer and thus suffers injury because of his own negligence then 'volenti non fit injuria' will apply

Exception to Volenti Non fit Injuria: Rescue cases

When the plaintiff voluntarily comes to rescue someone from a danger created by the defendant then the defence of volenti non fit injuria will not be available to the defendant.

Haynes v. Harwood, the defendants' servant left two unattended in a public street. A boy threw a stone on the horses due to which bolted and created danger for a woman and other people on the road. So, a constable came forward to protect them and suffered injuries while doing so. This being a rescue case so the defence of volenti non fit injuria was not available and the defendants were held liable.

Plaintiff is the wrongdoer

"Ex turpi causa non oritur actio" (from an immoral cause, no action arises)

A plaintiff will be unable to pursue legal remedy if it arises in connection with his own illegal act

Bird v. Holbrook, the defendant put spring guns in his garden and didn't fix any notice informing about the spring guns, the Trespasser (plaintiff) was injured by the guns, court held that he was entitled to recover damages suffered by him due to the spring-guns set by the defendant because the force used by defendant here was greater than the occasion demanded and he did not even inform the public by a notice.

Inevitable accident

An inevitable accident is one that was not intended, and which, under all the circumstances, could not have been foreseen or prevented by the exercise of reasonable precautions. It is a defence to a claim for negligence.

Stanley v. Powell, the defendant and the plaintiff went to a pheasant shooting. The defendant fired at a pheasant but the bullet after getting reflected by an oak tree hit the plaintiff and he suffered serious injuries. The incident was considered an inevitable accident and the defendant was not liable in this case.

Nitro-Glycerine case, A firm of carriers ie the defendants. In this case, was given a wooden case which was to carry from one place to another. The contents of the box were unknown. There was some leakage in the box and the defendants took the box to their office so that they can Examine it. After taking out the box they saw that it was filled with Nitro Glycerine and then it suddenly exploded and the office building which belonged to the plaintiffs got damaged. The defendants were held not liable for the same as the same could not be foreseen.

Vis Major i.e., Act of God

Vis major is a latin term which means 'superior force’

So, for the application of this defence there should be an extraordinary occurrence due to Natural forces which cannot be anticipated or which could not be prevented with reasonable means.

This defence is also recognized as a defence in the rule of "Strict Liability' in the case of Rylands v. Fletcher

Nichols v. Marsland, the defendant created an artificial lake on his land by collecting water from natural streams. Once there was an extraordinary rainfall, heaviest in human memory. The embankments of the lake got destroyed and washed away all the four bridges belonging to the plaintiff. The court held that the defendants were not liable as the same was due to the Act of God.

Private defence

The law gives power to defend yourself, other people and property. The condition to exercise self-defence is that there should be an imminent threat to a person's life or property.

The force used must be reasonable and proportionate to the danger, like we already saw in the case of Bird v. Holbrook where loading spring guns in garden without notice was considered disproportionate force.

Mistake

Mistake of Law; Mistake of Fact both are not a defence in tort.

Morrison v. Ritchie & Co the defendant by mistake published a statement that the plaintiff had given birth to twins in good faith. The reality of the matter was that the plaintiff got married just two months before. The defendant was held liable for the offence of defamation the element of good faith is immaterial in such cases

Consolidated Company v. Curtis, an auctioneer auctioned some goods of his customer, believing that the goods belonged to him. But then the true owner filed a suit against the auctioneer for the tort of conversion, the court held auctioneer liable and mentioned that the mistake of fact is not a defence that can be pleaded here.

But if it is not a defence then why is it given in general defences?

Because it can be a defence in certain situations

There are some exceptions when the defendant may be able to avoid his liability by showing that he acted under an honest but mistaken belief.

For example,

For the wrong of malicious prosecution, it is necessary to prove that the defendant had acted maliciously and without reasonable cause and if the prosecution of an innocent man is mistaken, it is not actionable.

Similarly, mistake of a servant may put his act outside the course of employment of his master and the vicarious liability of the master may not arise.

Necessity

Preventing greater harm is a valid defence.

In Necessity infliction of harm will be on innocent plaintiff, in pvt defence it will be on a wrongdoer plaintiff.

In Necessity harm is done intentionally compared to inevitable accident where harm is caused in spite of all attempts to avoid it.

Leigh v. Gladstone, it was held that the forcible feeding of a person who was hunger-striking in a prison served as a good defence for the tort of battery

Cope v. Sharpe, the defendant entered the plaintiff's premises to stop the spread of fire in the adjoining land where the defendant's master had the shooting rights. Since the defendant's act was to prevent greater harm so he was held not liable for trespass.

Carter v. Thomas, the defendant who entered the plaintiff's land premises in good faith to extinguish the fire, at which the fire extinguishing workmen were already working was held guilty of the offence of trespass

Kirk v. Gregory, A's sister-in-law hid some jewellery after the death of A from the room where he was lying dead thinking that to be a safer place. The jewellery got stolen from there and a case was filed against A's sister-in-law for trespass to the jewellery, she was held liable for trespass as the step she took was unreasonable.

Statutory authority

If an act is authorized by any act or statute, then it is not actionable even if it would constitute a tort otherwise. It is a complete defence and the injured party has no remedy except for claiming compensation as may have been provided by the statute.

Immunity under statutory authority is not given only for the harm which is obvious but also for the harm which is incidental.

The authority given by a statute can be of two types:

1. Absolute

2. Conditional

In the case of Absolute authority, there is no liability if the nuisance or some other harm necessarily results but when the authority is conditional it means that the same is possible without nuisance or any other harm.

Metropolitan Asylum District v. Hil the hospital authorities to the appellants were granted permission to set up a smallpox hospital. But the hospital was created in a residential area which was not safe residents as the disease can spread to that area Considering it nuisance an injunction was issued against the hospital. The authority, in this case, was conditional

Vaughan v. Taff Valde Rail Co., sparks from an engine of the respondent's railway company were authorized to run the railway set fire to the appellant's woods on the adjoining land It was held that since they did not do anything which was prohibited by the statute and took due care and precaution, they were not liable.

Hammer Smith Rail Co. v. Brand, the value of the property of the plaintiff depreciated due to the loud noise and vibrations produced from the running trains on the railway line which was constructed under a statutory provision. The court held that nothing can be claimed for the damage suffered as it was done as per the statutory provisions and if something is authorized by any statute or legislature then it serves as a complete defence the defendant was held not liable in the case.

Smith v. London and South Western Railway Co, the servants of a railway company negligently left the trimmings of hedges near the railway line. The sparks from the engine set fire to those hedges and due to high winds, it got spread to the plaintiff's cottage which was not very far from the line the court held that the railway authority was negligent in leaving the grass hedges near the railway line and the plaintiff was entitled to claim compensation for the loss suffered.

Negligence: Torts

Negligentia - Latin term which means 'disregard'

3 Forms of Negligence

Nonfeasance (not doing act which you had to)

Misfeasance (doing act wrongly)

Malfeasance (doing wrong act)

There could be civil or criminal liability which depends upon the nature of the negligence and the damage caused by it.

In law of torts, we will study the Civil aspect of Negligence which has 2 meanings.

Negligence as state of mind

This negligence is an element while committing other torts e.g. negligently or carelessly committing trespass, nuisance or defamation. Austin, Salmond and Winfield are the proponents of this idea of negligence.

Negligence as a type of conduct

This **Negligence is a Tort in itself,** this is the objective meaning of negligence, which treats negligence as a separate or specific tort. The House of Lords in **Donoghue v. Stevenson,** cleared that negligence, where there is a duty to take care, is also a specific tort in itself, and not simply an element in some other tort. This is the most important case so let's read about it in detail.

Donoghue v. Stevenson

Mrs Donoghue’s friend bought her a ginger-beer from a cafe. She consumed about half of the bottle, which was made of dark opaque glass, later she found decomposed remains of a snail in the bottle which caused her shock and severe gastro-enteritis.

Mrs Donoghue was not able to claim through breach of warranty of a contract because her friend bought the beer and therefore her friend was the party to contract and she was not she was not

This Case established several legal principles:
• **Negligence is a tort in itself.** This case affirmed that negligence is a tort. Which means you can take civil action against someone if their negligence causes you injury etc,

• **Duty of care** established that manufacturers have a duty of care to the end consumers or users of their products. This precedent has evolved and now forms the basis of consumer protection laws.

• **Lord Atkin's "neighbour principle"** extended the tort of negligence beyond the tortfeasor and the immediate party. It raised the question of exactly which people might be affected by negligent actions In Donoghue's case, she had not purchased the ginger beer but had received it as a gift she was a **"neighbour"** rather than a party to the contract.

So basically, you must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to Injure your neighbour and neighbour would be all persons who are so closely and directly affected by your act that you ought to have them in mind.

So, in this case Mrs Donoghue was awarded damages for her injury.

Essentials of Negligence

All essentials of Negligence could be summed up as:

Duty of Care towards Plaintiff which was **breached** by the defendant which resulted in **consequential harm** to the plaintiff

Duty of Care towards Plaintiff

Reasonable foreseeability is key in this element. The duty of Care should be of a reasonable nature, not too strict and not too lenient. And the duty should be towards the plaintiff. We saw that in Donoghue v. Stevenson that the scope of Duty of care was extended with the neighbour principle given by Lord Atkin.

Bourhill v. Young (1943)

Facts: A motor-cyclist had an accident and died instantly. After the body had been removed from the place of accident the plaintiff visited the place and saw some blood which was left on the road and because of that she suffered a nervous shock and gave birth to a still-born child of 8 months because of which she sued the representatives of the deceased motorcyclist

Decision: It was held that the deceased had no duty of care towards the litigant and therefore she could not claim any damages from the deceased's representatives.

Breach of Duty

Breach of duty means not taking due care which is required in a particular case. Now the question is how much due care is enough due care. That depends on **Amount of Risk** Involved in the Act. The **standard of care** that a person owns towards another is that of a **reasonable man or of an ordinarily prudent man**. If after taking this reasonable care if an accident occurs then it will not be called Negligence.

Blyth v Birmingham Waterworks Co. (1856)

Facts: A plug in a pipeline, which has been working satisfactorily. bursts because of exceptionally severe frost and the water flooded the premises of the plaintiff

Decision: Court held that the severe exceptional frost could not be reasonably foreseen so there was no breach of the duty of care, so the plaintiff cannot bring an action for negligence.

Consequential harm to Plaintiff

The harm may be Bodily harm, Harm to the reputation, Harm to property, Financial Loss or Mental Harm.

To prove negligence in court, the plaintiff needs to show the other party's breach of duty was both the actual and proximate cause of the harm caused.

Cause in Fact

The actual cause of injury to plaintiff should be because of defendant's negligence.

Proximate Cause

Proximate cause means "legal cause". In other words, the plaintiff will have to show that the injuries were the natural and direct consequence of the proximate cause without which the injuries would not have occurred.

There are two tests for determining the relationship between the act of the defendant and harm cause to plaintiff.

"But for test - Would the plaintiff have suffered the injury if defendant hadn't acted carelessly.

"Substantial Factor' Test - Is the act of plaintiff the substantial cause of harm caused to the plaintiff, which means how much contribution did the act of defendant had in the harm caused to the plaintiff.

Palsgraf v. Long Island Railroad Co. is the perfect case law to explain this concept.

Palsgraf v Long Island Railroad Co. (1928)

Facts: A passenger carrying a package was trying to bard a moving train. He seemed to be unsteady as if about to fall. A railway guard with an idea to help him pushed him from behind. In this act the package of fireworks fell resulting in an explosion and the plaintiff standing 25 feet away was injured

Decision: Court said that though there is a duty towards your neighbour but in this case the guard may be held negligent to the holder of the package but cannot be held negligent in relation to the plaintiff standing far away. The injury to plaintiff fulfils the actual cause requirement because if not for the act of the defendant he would not be injured, but it does not fulfil the proximate cause condition because the defendant couldn't have possibly known that the person, he pushed would be carrying firecracker and it will blast and injure someone standing 25 feet away. So, the guard is not liable towards the plaintiff.

Res Ipsa Loquitur

Res ipsa loquitur, Latin for "the thing speaks for itself," is a legal theory wherein the facts and circumstances surrounding an injury allow the court to presume that negligence has occurred. In an ordinary negligence case, the plaintiff must prove that the defendant owed the plaintiff a duty and that his conduct failed to measure up to that duty. However, under res ipsa loquitur, the defendant's negligence may be presumed and thus does need not be proven.

Byrne vs Boadle (1863)

The plaintiff was walking by a warehouse on the road and suffered injuries from a falling barrel of flour which rolled out of a window from the second floor. At the trial, the plaintiff's attorney argued that the facts spoke for themselves and demonstrated the warehouse's negligence since no other explanation could account for the cause of the plaintiff's injuries.

After this case Res Ipsa Loquitor Doctrine came into being.

Three conditions must be fulfilled to apply this doctrine:

• the defendant was in exclusive control of the situation or instrument that caused the injury;

• the injury would not have ordinarily occurred but for the defendant's negligence; and

• the plaintiff's injury was not due to his own action or contribution.

Then the burden of proof shifts to the defendant

Other Important Case Laws of Negligence

1. Glasgow Corp. v Muir (1943)

Facts: The managers of the defendant corporation tearooms permitted a picnic party to have their food in the tearoom. Twa members of the picnic party were carrying a big urn containing 6-9. gallons of tea to a tearoom through a passage where some children were buying sweets and ice cream, suddenly one of the persons lost the grip of the handle of urn and six children including the plaintiff were injured.

Decision: Court Held that the managers could not anticipate such an event that the tea would fall and there would be people exactly where the tea fell, and there was na negligence in handling the tea urn, it was an accident. therefore. she had no duty to take precautions. Hence, neither she nor the corporation could be held liable for injury

2. Sushma Mitra v M.P. State Road Transport Corp. (1947)

Facts: The plaintiff was resting her elbow on the window sill. A truck coming from the opposite direction hit her in her elbow as a result of which she received severe injuries.

Decision: Court said that the habit of resting elbow on the window of the bus is so common that it must enter into contemplation of a reasonable driver. It is the duty of the driver to pass on the road at a reasonable distance front the other vehicles.

3. Davies vs. Swan Motor Co. Ltd (1949)

Facts: The employee of Swansea Corporation, by not obeying the orders was riding on the steps attached to a lorry. A speedy driven bus colludes with the lorry, as a result, the employee died.

Decision: It was held that even though the bus driver was responsible for negligence the employee was contributing to the fault of negligence and therefore defendant can't be held liable. as there was **contributory negligence.**

In the above Sushma Mitra case, there was also contributory negligence but why was the bus driver held liable then? Because the negligence of putting your elbom on window sill of a bus is pretty common and it is reasonable expectation from bus driver to anticipate such behaviours.

4. Stansbele vs Troman (1948)

Facts: A decorator was engaged to carry out decorations in a house. Soon after the decorator left the house without locking the doors or informing anyone. During his absence, a thief entered the house and stole some property the value of which the owner of the house claimed from the decorator.

Decision: It was held that the decorator was liable as he was negligent in leaving the house open and as he was working in the house of plaintiff, he has a reasonable duty of care towards the plaintiff.

5. Rural Transport Service v Bezlum Bibi (1980)

Facts: The conductor of an overloaded bus invited passengers to travel on the roof of the bus. On the way the bus swerved on the right side to overtake a cart. One of the passengers on the roof of the bus was struck by an overhanging branch of a tree. He fell down and died because of injuries.

Decision: There was negligence on the part of both the driver and conductor of the bus because conductor put the passenger in danger when he made him to sit on the roof and driver should have been aware of this fact and should have driven carefully

6. Bolton v Stone (1951)

Facts- A person on road was injured by a ball hit by a player on a cricket ground abutting on that highway.

Decision: Court found out that the ground had been used for 90 years and during the last 30 years the ball had been hit in the highway on about only six occasions but no one had been injured before this incident. Held that the defendants (committee and members of cricket club) were not negligent because they couldn't foresee this exceptional coincidence and had no duty of care towards the plaintiff.

7. Doctor M. Mayi Gowda vs State of Karnataka (1996)

Facts: The complainant took an elephant Joyride at Mysore Dashahra Exhibition. While the complainants and other persons were in the process of getting down the cradle, the elephant became panicky in that Rush Hour and ran forward. The complainant was thrown on the ground and received serious injuries resulting in total loss of eyesight of both the eyes. He claimed compensation of 9,90,000 Rs.

Decision: It was found that it was a female elephant having participated in such rides and festivals for 13 years. It had acted in film shootings, various religious functions and honouring the VIPs. It was held that there was no negligence on the part of the opposite parties who had organised the Joy ride the reason of the accident was unusual and unfortunate behaviour of the elephant, and therefore, the complaint was dismissed.

8. Brown v. Kendal (1850)

Facts: The plaintiff's and defendant dogs were fighting and their owners attempted to separate them. In an effort to do so. Defendant beat the dogs with a stick and accidentally injured the Plaintiff, severely injuring him in the eye. The Plaintiff brought suit against the Defendant for assault and battery

Decision: Court held that the injury of the plaintiff was as a re of an inevitable accident, so defendant is not liable

9. Latimer v A.E.C. Ltd. (1953)

Facts: Due to heavy rain a factory was flooded with water, which got mixed with some oily substance. The floors in the factory became slippery. The factory owners spread all the available sawdust but some oily patches still remained there. The plaintiff slipped and was injured. His contention was that the factory should have been closed down because of the risk.

Decision: Court Held that the risk created was not so great as to justify that precaution. The defendants had acted reasonably and therefore, they were not liable

10.Glasgow Corporation v. Taylor (1922)

Facts: A seven-year-old boy died as a result of eating berries which looked like cherries from a poisonous plant that was growing in the Botanic Gardens in Glasgow.

Decision: Glasgow Corporation had permitted children to go on to the land and it is understandable that the berries would have appealed to visiting children, thus representing a danger. It was also found that the shrub bearing the berries was neither properly fenced nor a notice regarding poisonous berries was displayed. Held that the defendants had not taken proper care and so were liable

11. Municipal Corporation of Delhi v. Subhagvanti (AIR 1966)

Facts: A very old clock tower situated right in the middle of a crowded area of Chandni Chowk suddenly collapsed thereby causing the death of many people. The clock tower was 80 years old although the normal life span of the clock tower should have been 40-45 years.

Decision: The court held that the clock tower was under the control of The Municipal Corporation of Delhi and they had a duty of care towards the citizens, By Ignoring to repair the clock tower, they had breached their duty of care toward the public and were liable for the collapse.

12. Ramesh Kumar Nayak vs Union of India (1994)

Facts: The postal authorities failed to maintain the compound wall of a post office in good condition which collapsed and the defendant sustained injuries.

Decision: It was held that postal authorities were liable since that had a duty to maintain the post office premises and due to their breach of duty to do so, the collapse occurred. Hence were liable to pay compensation.

13.Mata Prasad vs. Union of India (1978)

Facts: the gate of the railway crossing was open. The truck driver coming thereby tried to cross the lane but was hit by the train

Decision: It was held that the as the gates were not locked the truck driver could have assumed that it was to go and therefore the railway authorities were held liable for negligence because they breached their duty of care towards the plaintiff by not closing the gates when the train before the train crossed.

14. Municipal Corporation of Delhi v. Sushila Devi (1999)

Facts: There was a person passing by from the road died because of the fall of a branch of the tree on the road on his head.

Decision: It was held that the Horticulture department of a corporation, was having the legally bound duty to take reasonable care and have regular check-ups of trees and therefore the Corporation was held liable.

15. Cates V. Mongini Bros. (1917)

Facts: The plaintiff, a lady visitor to a restaurant was injured by the falling of the ceiling fan on her. The reason for the falling of the fan was a latent

defect in the metal of the suspension rad of the fan. The defect could not have been discovered by a reasonable man.

Decision: It was held that since the harm was not foreseeable. they were not negligent and therefore were not liable for the loss to the lady plaintiff

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Nuisance - Torts

Origin

LATIN ---------- nocere ----- to harm

OLD FRENCH ---------- nuire

OLD FRENCH --------- hurt

Nuisance ----------injury,hurt (late middle english)

Nuisance ordinarily means anything which annoys, hurts or that which is offensive

Nuisance is a continuing wrong, it should be there for a continuous period of time, it should not be momentary

Definitions of Nuisance

According to **Salmond**, "the wrong of nuisance consists in causing or allowing without lawful justification the escape of any deleterious thing from his land or from elsewhere into land in possession of the plaintiff, e.g., water, smoke, fumes, gas, noise, heat, vibration, electricity, disease, germs, animals".

Pollock defines Nuisance as "Nuisance is the wrong done to a man by unlawfully disturbing him in the enjoyment of his property, or, in some cases, in the exercise of a common right."

Stephen defines nuisance as "anything done to the hurt or annoyance of the lands, tenements of another, and not amounting to a trespass."

Types of Nuisances

Public Nuisance covered under IPC (Section 268)

Unreasonable, unwarranted, or unlawful interference with a right common among general public

Public nuisance does not create a civil cause of action for any person. In order that an individual may have a private right of action in respect of a public nuisance

(i) He must show special and particular injury to himself beyond that which is suffered by the rest of public.

(ii) Such injury must be direct, and not a mere consequential injury; as, where one way is obstructed, but another is left open.

(iii) The injury must be shown to be of a substantial character.

Dr. Ram Raj Singh v. Babulal (1928)

Plaintiff was a doctor, his patients were caused inconvenience and discomfort from the defendant's brick powdering mill, this was held as Private nuisance because special damage to the plaintiff had been proved.

Private Nuisance - covered under Tort Law

Essentials of Nuisance under Tort Law

Plaintiff should have right to use/enjoy the land

• A guest at your property can't sue the third person for causing nuisance the person bringing in the tort action should have a right over the land to bring a case of Nuisance in the court.

Defendant should be doing unreasonable use of land and causing Unreasonable interference or damages.

• The interference may be injury to the property itself (like fumes from a factory destroying trees of neighbouring land) or it may be injury to comfort or health of occupants of certain property (like playing unreasonably loud music all the time and thus disrupting comfort of neighbours)

• The interference should be substantial, not a mere inconvenience or trifling

• An act, which is otherwise reasonable, doesn't become unreasonable and actionable due to the sensitiveness of the plaintiff
Ex. If certain kind of traffic is no nuisance for a healthy man it will not entitle a sick man to bring an action if he suffers thereby, even though the damage is substantial.

Robinson v Kilver (1889)

The defendants operated a factory which made paper boxes. This required the factory to be continually warm and dry to ensure that the paper boxes were in good condition. The claimant rented the ground floor and used this area to store special brown paper. The heat from the defendant's factory damaged this brown paper, which was unusually sensitive to heat, and the claimant sued in nuisance.

Court held that a person carrying on an exceptionally delicate trade cannot complain if an injury Is caused by his neighbour doing something lawful on his property.

Defences Under nuisance

Prescription

o A right to do an act, which would otherwise be a private nuisance, may be acquired by prescription (i.e., by elapse of certain number of years)

o In India you get prescription at the expiration of 20 years (Section 26 of Limitation Act and Section 15 of the Easements Act.)

Statutory authority

o A Statute authorising a particular act or the use of land in a way is a defence of nuisance.

Defences which don't work

Nuisance due to act of others. Sometimes the act of two or more persons, acting independently of each other, may constitute a nuisance although the act of any one of them alone would not be so.

Lambton v. Mellish

Two merry-go-round owners were competing for business and were doing noise pollution with the use of loud speaker. Carry on trade which causes intolerable noises is nuisance, but here i was claimed that the other persons loud speaker was louder. Court held that Both contributed to the totality of the nuisance

Public good- It is no defence to say that what is a nuisance to a particular plaintiff is beneficial to the public in general, otherwise, the public utility undertaking could be held liable for the unlawful interference with the rights of individuals.

Reasonable care- Use of reasonable care to prevent nuisance is generally no defence,

Plaintiff coming to nuisance- It is no defence that the plaintiff himself came to the place of nuisance. A person cannot be expected to refrain from buying a land on which nuisance already exists.

Remedies for Nuisance

There are three kinds of remedies available in the case of a nuisance, Injunction, Damages and Abatement of Nuisance

Injunction

An injunction is a judicial order restraining a person from doing or continuing an act which might be threatening or invading the legal rights of another. It may be in the form of a temporary injunction or permanent injunction.

Damages

The damages may be offered in terms of compensation to the aggrieved party. The damages to be paid to the aggrieved party is decided by the state and the purpose of the damages is not just compensating the individual who has suffered but also making the defendant realise his mistakes and deter him in future

Abatement of Nuisance

An occupier of land is permitted to abate, i.e., to terminate by his own act, nuisance which is affecting his land. For example, he may cut the branches (overhanging)

a 'notice' to the other party is required unless the nuisance constitute a danger to the life or property, When the abatement is possible without going on the wrongdoer's land, the same may be done without notice.

Trespass v. Nuisance

Trespass is a direct interference with a person's possession of the land and it takes place through material objects. It is prima facie actionable that means that there is no need to prove damage in trespass.

Ex: If you enter someone's private property wrongfully and come out without doing any damage, that will also be actionable under Trespass

Nuisance is a more indirect form of a tort which deals with the interference with a person's enjoyment of land, it does not specifically take pace through a tangible medium and damage has to be proved to make a case of nuisance.

Ex. Burning wood at your land but all the smoke going in other's land causing him interference to enjoy his land.

Case Laws

1. Ball v. Ray (1873) - Disturbances to neighbours throughout the whole night by the noises of horses in a building converted into a stable was held to be unreasonable interference.

2 Noble v Harrison (1962) -The branch of a tree overhanging on the highway was not considered nuisance, nor was the nuisance created by its fall as the defendant neither knew or could have known that the branch would break and fall. But if it was private land instead of public highway then it would constitute as nuisance, as there is an interference with enjoyment of one's property.

3. Campbell v Paddington Corpn. (1911)

An uninterrupted view of the funeral procession of King Edward VIII could be had from the window of the plaintiff's building. Sa the plaintiff sold tickets for the same. The defendant corporation constructed a stand on the highway in front of the plaintiff's building, which obstructed the view. On account of this obstruction, the prospective lessees refused to come to observe the procession m the plaintiff's house. The plaintiff filed a suit for recovery of damages. The stand erected by the borough was held to be a nuisance and the plaintiff was found to be entitled to recover the profit

which but for the defendants' act she might have made by letting seats as damages.

4. Radhey Shyam v Gw. Prasad (1978)
The plaintiff has alleged that the mill was causing a lot of noise which in turn was affecting the health of the plaintiff. It was held that by running a flour mill in a residential area, the defendant was causing a nuisance to the plaintiff and affecting his health severely.

5. Malton Board OF Health v. Malton Manure Co.
Carrying on trade which causes offensive smells is nuisance, you can remember this case law with the help of its name. Manure smells bad, so Malton Manure Co. case is about Nuisance due to offensive smells.

6. Ushaben Navinchandra Trivedi v. Bhagyalaxmi Chitra Mandal

The plaintiff had sued the defendant for a permanent injunction to restrain the defendant from showing a movie named "Jai Santoshi Maa". Plaintiff claimed contents of the movie significantly hurt the religious sentiments of the people belonging to the Hindu community as the movie showed Hindu Goddess Laxmi. Parvati, and Saraswati. to be jealous of one another and were ridiculed in the film. It was held that hurt to religious sentiments was not an actionable wrong.

7. Mohini Mohan v. Kashinath Ray

Right of doing Kirtan upon another's land doesn't grant you an easement, a right to do the same can be acquired if it qualifies as a custom.

8. Solatu v. De Held (1851)

The plaintiff resided in a house next to a Roman Catholic Chapel of which the defendant was the priest and the chapel bell was rung a. all hours of the day and night. It was held that the ringing was a public nuisance and the plaintiff was held entitled to an injunction.

9. Dattamal Chiranji Lal v/s Lodh Prasad (1960)

The defendant was awarded an injunction to stop the grinding mill which causes inconveniences to the plaintiff and to his family.

10.Attorney General v. P.Y.A Quarries (1957)

The defendants operated a quarry and used a blasting technique which emitted large quantities of dust and noise, as well as causing vibrations which interfered with the enjoyment of land for many individuals in the area.
Court held that nuisance from vibration from quarry causing personal discomfort to a large number of people is public nuisance.

11. St. Helen Smelting Co.v. Tipping (1865)

Fumes from defendant's manufacturing work damaged plaintiff's trees and shrubs. This was held as private Nuisance.

Trespass to land- Tort Law

Trespass means an unlawful act committed against the property of another person and also against another person also.

So, trespass can be categorized as:

- Trespass to Property

o Trespass to Land (immovable property)

Trespass quare olasum fregit- this means the entry on another person's land.

o Trespass to Movable property
Trespass de bonis asportatis- this means the taking away of another person's goods.

Trespass to Person

Assault
Battery

Here we will study Trespass to Land and Trespass to movable property and Trespass to person we will deal in further notes. What we mean when we say **'land'**

Land includes the soil, any fixtures permanently attached to the land (Houses, walls, poles etc.), also the airspace above the land and ground below up to a reasonable height and depth.

So, in context of land, trespass will be Interference with possession or enjoyment of land of another,
Unlike nuisance (which in Indirect interference) trespass is direct interference and for trespass is actionable per se that means no damage has to be proved.

This interference can be by a person himself or through some material object.

Trespass could be by wrongful entry, by placing things on land, by animal, by remaining on the land (when you enter the land with authorization but don't leave after authorization is revoked),

Remedies for the tort of trespass include

- Damages
- Injunction

Essentials of Trespass to Land

1. Unauthorized Entry

Also includes unauthorized entry of material objects.

Gregory v. Piper

Rubbish of defendant went into property of plaintiff; it was held as trespass.

Abdul Gani v. Sadu Ram and Others

Discharge of filthy water from a spout in the defendant's house on the plaintiff's land is trespass.

2. Land must be in possession of plaintiff (actual/constructive)

Servant who has constructive possession can exclude others from the property on behalf of his master and can also sue for trespass.

The area above and below the land to a reasonable limit is also part of the land.

Kelsen v Imperial Tobacco Co (1957]

Defendant committed trespass by allowing an advertising board to project eight inches into Plaintiff's property at ground level and another above ground level. We know that Airspace above land to a reasonable extent is also covered under land'. So, defendant was held liable.

Bulli Coal Mining Co v Osborne [1899]

The Defendants mined from their land through to the P's land. This was held to be trespass to the subsoil.

Section 17 in THE AIRCRAFT ACT, 1934 permits the flying of an aircraft over a property which is outside the reasonable heights of usability of the property.

Bernstein v. Skyviews (1978)

Plaintiff sued the defendants in trespass for taking aerial photographs from hundreds of meters above the ground of his house. The Court held that at that height Plaintiff had no reasonable use of airspace and the defendant was not liable for trespass on that ground

3. Entry must be voluntary and intentional.

Trespass to land is an intentional tort. However, intention for the act is required, not an intention to trespass. Consequently, deliberate entry is required and lack of knowledge as to trespass will not be a defence.

Basely v. Clarkson

When the defendant mowed his own land, he mistakenly crossed the boundary and mowed the land of his neighbour, believing it was his own land. The defendant's plea of mistake in claiming trespass to land failed because his act of cutting grass was intentional even though he made a

mistake as to where the boundary was. However, if the entry is proven to be involuntary then it is not a trespass.

An involuntary trespass is not actionable.

Smith v Stone (1647)

Defendant was carried onto the land of Plaintiff by force and violence of others, it was held that there was trespass by the people who carried Defendant onto the land, but no trespass was committed by Defendant.

Defences (License, jus tertii and Necessity)

License is express or implied permission, given by the possessor of land, to be on that land but if you enter the land with authorization (license in this case) but don't exit when the authorization is revoked, that will also constitute as trespass. This is called trespass ab initio.

Jus tertii is where the defendant can prove that the land is not possessed by the plaintiff, but by a third party,

Necessity is the situation in which it is vital to commit the trespass;

Esso Petroleum Co v Southport Corporation, [1956]

The captain of a ship committed trespass by allowing oil to flood a shoreline. This was necessary to protect his ship and crew, the defence of necessity was accepted.

Necessity does not, however, permit a defendant to enter another's property when alternative, though less attractive, courses of action exist.

Trespass to Movable Property

Direct physical interreference with movable property in the plaintiff's possession constitutes Trespass to Movable Property/goods. Any person whose possession of goods is directly interfered with, can bring this action. So, it is a wrong against the 'Right of possession of the plaintiff. The possession could be physical or constructive, so it doesn't matter that

the person suing for this wrong is not the owner because it is wrong against possession.

It is wrong against possession so **the defence of jus tertii (defence used in trespass to land when the ownership is with third party and not with the person suing) is not available**
Armory v. Delamirie (1721)

The chimney sweeper's boy, who after finding a jewel had given it to a jeweller to be valued, was held entitled to recover its full value from the jeweller on his refusing to return the same even when he was not the owner.

Doesn't matter if wrong is committed intentionally, negligently, or even by an honest mistake.

Kirk v. Gregory (1876)

On A's death, his sister-in-law removed some jewellery from the room where his dead body was lying, to another room under a reasonable but mistaken belief that the same was necessary for its safety. The jewellery was stolen from the place where it was now kept. In an action by the executors of A. A's sister-in-law was held liable for trespass to the jewellery.

Lawful Justification and Inevitable Accident are valid Defence to the Tort of Trespass to goods.

National Coal Board v. Evans (1951)

The defendants, a country council, had employed certain independent contractors to make excavations on their Beneath the land were laid some electric cables by the plaintiff's predecessor in title, of which the defendants had no knowledge. The contractors, not having been aware of the underground cables, the same were damaged during excavations. The damage having been caused without any fault on the part of the defendants, they were held not liable.

Detinue v. Trespass

When, the defendant is wrongfully detaining the goods belonging to the plaintiff and refuses to deliver the same on lawful demands, the plaintiff can recover the same by bringing an action for detinue. Detinue is

different from trespass at certain times, in Detinue the defendant may assume possession of the goods, but in trespass the goods remain in the possession of plaintiff only assume possession of the goods, but in trespass the goods remain in the possession of plaintiff only.

Conversion v. Trespass

Conversion consists in wilfully and without any justification dealing with the goods in such a manner that another person, who is entitled to immediate use and possession of the same, is deprived of that.

Richardson v. Atkinson, (1723)

The defendant drew out some wine out of the plaintiff's cask and mixed water with the remainder to make good the deficiency. He was held liable for the conversion of the whole cask as he had converted part of the contents by taking them away and the remaining part by destroying their identity.

The main difference between trespass to Goods and conversion is the degree of interference. Conversion occurs when a person uses or alters a piece of personal property belonging to someone else without the owner's consent. The degree of interference for conversion must be so serious that the tortfeasor, or person accused of committing the tort, may be required to pay the full value of the property.

Defamation - Law of Torts

"A man's reputation is his property, and if, possible, more valuable, than other property".
-Dixon v Holden (1869)

Winfield "publication of statement which tends to lower a person in the estimation of right-thinking members of society generally or which makes them shun or avoid that person"

Defamation is **both a civil and criminal wrong**, A person can institute criminal proceedings against the writer or the publisher or he can sue him in a civil action for damages in tort for the injury he has suffered.

Law of defamation creates a balance between freedom of speech and right to reputation of another person.

It is a reasonable restriction for the freedom of speech under Article 19(2) of Constitution of India.

English law divides actions for defamation into libel and slander,

Libel - Representation in permanent form (writing, picture etc)

Slander - Spoken word or gesture etc

We don't have any such classification as libel and slander for defamation in India,

Essentials of Defamation

(1) The words must be false and defamatory:

(2) The said words must refer to the plaintiff; and

(3) The words must be published.

Words must be defamatory

When the statement/representation made injures the reputation or character of the plaintiff. It is called a defamatory statement.
It is very subjective so the test is if it is defamatory for a right-minded citizen who is of average intelligence. So, if a substantial proportion of society think less of a person because of a statement, then it is a defamatory statement.

South India Railway Co. v Ramakrishna I.L.R. (1890)

The railway guard, while checking the tickets and calling upon the plaintiff to produce his ticket said to him in the presence of the other passengers. "I suspect you are travelling with a wrong (or false) ticket." The plaintiff produced the ticket which was in order. Held that the words spoken by the guard were spoken bona fide and under the circumstances of the case there was no defamation

Innuendo- Sometimes the statement may prima facie be Innocent but because of some latent or secondary meaning it may be considered to be defamatory. Even a statement of commendation may be defamatory in the context in which it is said. The statement that a lady has given birth to a child is defamatory when the lady is unmarried.

Cassidy v Daily Mirror Newspapers Ltd. (1929)

Mr. Cassidy did not live with his lawful wife (Mrs. Cassidy) but occasionally came and stayed with her at her flat. The defendants published in their newspaper a photograph of Mr. Cassidy and Miss 'X' with the words "Mr. M. Cassidy, the race house owner. and Miss 'X. whose engagement has been announced." Mrs. Cassidy sued the defendant for libel alleging that the innuendo was that Mr. Cassidy was not her husband and he lived with her in immoral cohabitation. Held that the innuendo was established.

Tolley v Fry & Sons Ltd (1931]

The defendants advertised their chocolate with a caricature(cartoon) of the claimant, who was a famous golfer. showing him with the defendants' chocolate in his pocket while playing golf. The advertisement compared the quality of chocolate with the golfer. The claimant did not consent to or knew about the advertisement, he contended in court that the use of his image made him look like someone who prostituted his reputation for advertising purposes and was thus unworthy of his status. (Advertisement by celebrities was not common in those day) So This was held to be defamation.

Words must refer to the plaintiff

Halton & Co. v Jones (1910)

Defendant wrote defamatory language using Plaintiff's name. Defendant claimed it should not be held liable for libel because it used Defendant's name as a fictitious name and had never even heard of Plaintiff. The fact that Defendant did not intend to defame Plaintiff is not a defence to the claim of libel.

For such situation the defendant must prove:

(i) that the words which had been published by him were published innocently, and

(ii) that as soon as he came to know that these words published by him resulted in the defamation of the plaintiff, an offer of amends (a suitable correction and an apology) was made

Defamation of a class of persons - Defamation is an injury to a man's reputation, which is a right in rem by its very nature, reputation is that of an individual and not a class of persons. If a man wrote that all lawyers were thieves, no particular lawyer could sue him.

Defamation of the deceased - Defaming a deceased person is no tort. Under criminal law, it may amount to defamation to impute anything to a deceased person if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family/other near relatives (Sec. 499, Explanation, IPC.)

Words must be published

Publication means making the defamatory matter known to some person other than the person defamed. Sending the defamatory letter to the plaintiff is no defamation It is defamation only if more than two persons are involved

Nemi Chand v Khemraj (1973)

The defendants called a meeting against the plaintiff and made wild imputations against him. One of the defendants got these speeches printed and the printouts were lying in his godown. The plaintiff argued that even printing constitutes publication. It was held that mere printing without publication is not actionable.

If a third person wrongfully reads a letter meant for the plaintiff the defendant is not liable.

In the eyes of law, husband and wife are one person and the communication of a defamatory matter from the husband to the wife or vice versa is no publication

TJ Ponnen v M.C. Verghese (1970)
Husband wrote a letter to the wife containing defamatory matter about the father-in, law (wife's father). His wife had passed on those letters to her father (M.C. Verghese) and he sued the plaintiff. The husband (Pannen) contended that the letters addressed by him to his wife are not admissible in evidence by virtue of Sec. 122 Evidence Act. It was Held that the husband is liable for defamation but the defamatory statement has to be proved from evidence other than that of the wife.

Theaker v Richardson (1962)

Defendant wrote a letter to the plaintiff making false allegations of her being a prostitute. The letter was sent under the circumstances that the plaintiff's husband in all probability would have read the same. The plaintiff's husband opened and read it. The defendant was held liable.

Defences to Defamation

Following defences are available for Defamation.

(i) Justification or Truth

(ii) Fair Comment

(iii) Privilege

Justification or Truth

In a civil action for defamation truth of the defamatory matter is complete defence (under criminal law, besides being true the imputation must be shown to have been made for public good)

The defence is available even though the publication was made maliciously.

Radheyshyam Tewari v Eknath (1985)

The defendant, who was editor, printer and publisher of a newspaper published a series of articles against the plaintiff, a Black Development Officer, alleging that the plaintiff had issued false certificates, accepted bribe and adopted illegal means in various matters. In an action for defamation, the defendant could not prove that the facts published by him were true and therefore, he was held liable.

Fair Comment

It is generally a defence available to authors, editors, critics, etc. It is critical appreciation of existing facts and not invention of new facts. Further, the comment must be 'fair i.e., without malice and must be in public interest.

"Public interest' means matters relating to Administration of Government departments, public companies, public institutions and local authorities, public meetings, pictures, theatres, public entertainment, text books, novels, etc.

"Comment' means an expression of opinion on certain facts rather than making a statement of fact

McQuire v Western Morning News Co. (1903)

The comment in question was "A three act musical absurdity. written and composed by T.C. McQuire is composed of nothing but nonsense of a not very humorous character, whilst the music is far from attractive." Held that the words may be fairly called criticism.

Comment can't be fair when it is based upon untrue facts.

Tushar Kanti Ghash v Bina Bhowmic (1953)
The Amrit Bazar Patrika published a news item which contained statements like day light robbery' which were factually incorrect as they were untrue statement of fact, the defence of fair comment was defeated

Privilege

The law recognizes that the right of free speech outweighs the plaintiff's right to reputation on certain occasions.

Such occasions are treated as privilege' by the law.

It is of two types:

Absolute - No action lies for the defamatory statement even though the statement is false or has been made maliciously. It is recognized in 'Parliamentary proceedings', Judicial proceedings', and 'State communications

Qualified - It is usually used in cases where the person communicating the statement has a "legal, moral, or social duty to make it" The person has to show that he has made the statement in good faith, believing it to be true and that the statement was made without malice. One example of qualified privilege is the immunity of members of the press from defamation charges for statements made in the press in good faith unless it can be proven that they were made with malice.

Other examples when qualified privilege is used are, Proceedings of regulatory agencies, sessions of legislatures, and governmental bodies. Fair criticism in a review etc.

In Horrocks v Lawe (1964) it was held that howsoever prejudiced the defendant may have been or howsoever irrational in leaping to conclusions, unfavourable to plaintiff, but if he believed in the truth of what he had said on privileged occasion that entitled him to succeed in his defence of privilege.

Remoteness of damages

When a tort is committed, damages have to be paid. But there could be a chain of events too, till what extent is my liability to pay for the damages. For examples:

Situation 1 - I was riding my scooty negligently and hit a pedestrian, he broke his leg, I am liable for damages, Fair Enough

Situation 2 - I was riding my scooty negligently and hit a pedestrian, he was carrying a live bomb which exploded when I hit him, the explosion killed many and destroyed a 20-floor apartment building. I won't pay damages for all of this. So, from this absurd example we can see that liability can only be attached to consequences of the act which are not too remote to the conduct. No defendant can be made liable ad infinitum for all the consequences which follow his wrongful act.

How and where is such a line to be drawn?

To answer this question, we are to see whether the damage is too remote a consequence of the wrongful act or not. If that is too remote, the defendant is not liable. If, on the other hand, act consequences are so connected that they are not too remote but are proximate, the defendant will be liable for the consequences.

Scott v. Shepherd

A threw a lighted squib into a crowd, it fell upon X. X, in order to prevent injury to himself threw it further, it fell upon Y and Y in his turn did the same thing and it then fell on B, as a result of which B lost one of his eyes. A was held liable to B

The reasoning is that though the X and Y intervened, the consequence (B losing his eyes) is not too remote to the conduct (A throwing a lighted squib into a crowd)

Haynes v. Harwood

The defendant's servants negligently left a horse van unattended in a crowded street. The throwing of stones at the horses by a child, made them bolt and a policeman was injured in an attempt to stop them with a view to rescuing the woman and children on the road. One of the defences pleaded by the defendant was novus actus interveniens ('new act intervening' defence used in negligence), or remoteness of consequences le the mischief of the child was the proximate cause and the negligence of the defendant's servants was the remote cause. It was held that the defendant was liable even though the horses had bolted when a child threw stones on them, because such a mischief on the part of the children was anticipated.

2. Tests to Determine Remoteness

Test of reasonable foresight

The liability of the defendant is only for those consequences which could have been foreseen by a reasonable man placed in the circumstances of the wrongdoer.

If the consequences of a wrongful act could have been foreseen by a reasonable man, they are not too remote. If, on the other hand, a reasonable man would not have foreseen the consequences, they are too remote.

Test of directness

The test of reasonable foresight was rejected and the test of directness was considered to be more appropriate by the Court of Appeal in **Re Polemis and Furness, Withy & Co. Ltd. case**

The defendant's employees were loading cargo into a ship and an employee negligently caused a plank to fall into the ship's hold. The plank caused a spark, which ignited some petrol vapour in the hold, causing an explosion that resulted in the ship becoming a total loss. The matter was taken to arbitration.

It was held that the defendant was liable. Although the fire itself may not have been foreseeable. It was held that the defendant would nevertheless be liable for all direct consequences of his actions.

The only question which has to be seen in such a case is whether the defendant's act is wrongful or not, i.e., could he foresee some damage? If the answer to this question is in the affirmative, I.e., if he could foresee any damage to the plaintiff, then he is liable not merely for those consequences which he could have foreseen but for all the direct consequences of his wrongful act.

Test of directness was adopted by Re Polemise case but it was laid down in **Smith v. London and South Western Railway Co**

The railway company was negligent in allowing a heap of trimmings of hedges a grass near a railway line during dry weather. Spark from the railway engine set fire to the material. Due to high wind, the fire was carried to the plaintiff's cottage which was burnt. The defendants were held liable even though they could not have foreseen the loss to the cottage.

"Where there is no direct evidence of negligence, the question what a reasonable man might foresee is of importance in considering the question whether there is evidence for the jury of negligence or not. but when it has been once determined that there is evidence of negligence, the person guilty of it is equally liable for its consequences, whether he could have foreseen them or not. What the defendant might reasonably anticipate is only material with reference to the question, whether the defendants were negligent or not, and cannot alter their liability if they were guilty of negligence''

The test of directness has been considered to be incorrect and was rejected by the Judicial Committee of the Privy Council in **Overseas Tankship (U.K.) Ltd. v. Morts Dock and Engg. Co. Ltd. (Wagon Mound Case)**

Overseas Tankship had a ship, the Wagon Mound, docked in Sydney Harbour in October 1951 the crew had carelessly allowed furnace oil (also referred to as Bunker oil) to leak from their ship. The oil drifted under a wharf thickly coating the water and the shore where other ships were being repaired Hot metal produced by welders using oxyacetylene torches on the respondent's timber whart (Mort's Dock) at Sheerlegs Wharf fell on floating cotton waste which ignited the oil on the water. The wharf and ships moored there sustained substantial fire damage. In an action by Murt's Dock for damages for negligence it was found as a fact that the defendants did not know and could not reasonably have been expected to know that the oil was capable of being set alight when spread on water. The dock owners knew the oil was there, and continued to use welders.

The leading case on proximate cause was Re Polemis. which held that a defendant can be deemed liable for all consequences flowing from his negligent conduct regardless of how unforeseeable such consequences are,

The Privy Council found in favour of the defendant, agreeing with the expert witness who provided evidence that the defendant, in spite of the furnace oil being innately flammable, could not reasonably expect it to burn on water. The Board indicated Morts would probably have been successful if they had claimed damages for direct damage by the oil to the slipway but this was minor and not part of the damages claimed (although success on this count may have saved Marts Dock and Engineering the costs of all the litigation for bath parties across all three levels of court)

The Privy Council's advice soundly disapproved the rule established in Re Palemis, as being "out of the current of contemporary thought and held that to find a party liable for negligence the damage must be reasonably foreseeable. The council found that even though the crew were careless and breached their duty of care the resulting extensive damage by fire was not foreseeable by a reasonable person, although the minor damage of oil on metal on the slipway would have been foreseeable

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Strict and Absolute Liability

Strict Liability (The rule in Rylands v. Fletcher)

In Rylands v. Fletcher, the defendant got a reservoir constructed, through independent contractors, over his land for providing water to his mill. There were old disused shafts under the site of the reservoir, which the contractors failed to observe and so did not block them. When the water was filled in the reservoir, it burst through the shafts and flooded the plaintiff's coal mines on the adjoining land. The defendant did not know of the shafts and had not been negligent although the independent contractors had been.

Even though the defendant had not been negligent, he was held liable.

Blackburn (judge in the case) said: "We think that the rule of law is, that the person who for his own purposes brings on his lands and keeps there anything likely to do mischief if it escapes, must keep it in at his peril, and if he does not do so, is prima facie answerable for all the damage which is the natural consequence of its escape. He can excuse himself by showing that the escape was owing to the plaintiff's default; or perhaps that the escape was the consequence of vis major, or the act of God; but as

nothing of this sort exists here, it is unnecessary to inquire what excuse would be sufficient."

The liability arises not because there was any fault or negligence on the part of a person, but because he kept some dangerous thing on his land and the same has escaped from there and caused damage. Since in such a case the liability arises even without any negligence on the part of the defendant, it is known as the rule of **Strict Liability**

For the application of the rule, therefore, the following three essentials should be there:

(1) Dangerous Thing - A thing likely to do mischief if it escapes. In Rylands v. Fletcher, the thing so collected was a large body of water. The rule has also been applied to **gas, electricity, vibrations, yew trees, sewage, flag-pole, explosives, noxious fumes, and rusty wire in various cases.**

2.Escape

The thing causing the damage must escape to the area outside the occupation and control of the defendant. Thus, if there is projection of the branches of a poisonous tree on the neighbour's land, this amounts to an escape and if the cattle lawfully there on the neighbour's land are poisoned by eating the leaves of the same the defendant will be liable under the rule **(Crowhurst v. Amersham Burial Board).** But, if the plaintiff's horse intrudes over the boundary and dies by nibbling the leaves of a poisonous tree there, the defendant cannot be liable because there is no escape of the vegetation in this case (Ponting v. Noakas).

In **Read v. Lyons** the plaintiff was an employee in the defendant's ammunition factory. While she was performing her duties inside the defendant's premises, a shell, which was being manufactured there, exploded whereby she was injured. There was no evidence of negligence on the part of the defendants. Even though the shell which had exploded was a dangerous thing. it was held that the defendants were not liable because there was no "escape" of the thing outside the defendant's premises and therefore, the rule in Rylands v. Fletcher did not apply to this case.

(3) Non-natural use of land

Water collected in the reservoir in such a huge quantity in Rylands v. Fletcher was held to be non-natural use of land. Keeping water for

ordinary domestic purposes is 'natural use'. For the use to be non-natural, it must be some special use bringing with it increased danger to others, and must not merely by the ordinary use of land or such a use as is proper for the general benefit of community

In **Sochacki v Sas** *it has been held that the fire in a house in a grate is an ordinary, natural proper. everyday use of the fireplace in a room. this fire spreads to the adjoining premises, the liability under the rule in Rylands v Fletcher cannot arise*

Similarly in **Noble v. Harrison,** *it has been held that trees (non-poisonous) one's land are not non-natural use of land. There the branch of a non- poisonous tree growing as the defendant's land, which overhung on the highway suddenly broke and fell on the plaintiff's vehicle passing along the highway. The branch had broken off due to some latent defect. It was held that the defendant could not be made liable under the rule in Rylands v. Fletcher as growing of trees is non-natural use of land. However, growing of a poisonous tree is not non-natural use of land and if the animal on the neighbour's land nibbles the leaves of such a tree and dies, the defendant will be liable under the rule as happened in Crowhurst v. Amersham Burial Board.*

Act done by an independent contractor Generally, an employer is not liable for the wrongful act done by an independent contractor. However, it is no defence to the application of this rule that the act causing damage had been done by an independent contractor. In Rylands v. Fletcher itself, the defendants were held liable even though they had got the job done from the independent contractors.

Similarly,
In **T.C. Balakrishnan Menon v. T.R. Subramanian,** an explosive made out of a coconut shell filled with explosive substance, instead of rising into the sky and exploding there, ran at a tangent, fell amidst the crowd and exploded, causing serious injuries to the respondent. One of the questions for consideration before the Kerala High Court was whether the appellants who had engaged an independent contractor to attend to the exhibition of fireworks would be liable. It was held that the explosive is an "extra hazardous" object and attracts the application of the rule in Rylands v. Fletcher. The persons using such an object are liable even for the negligence of their independent contractor.

The following exceptions to the rule have been recognized by Rylands v. Fletcher and some later cases:

(i) Plaintiff's own default;

In Eastern and South African Telegraph Co. Ltd. v. Capetown Tramways Co., the plaintiff's submarine cable transmissions were disturbed by escape of electric current from the defendants' tramways. It was found that the damage was due to the unusual sensitiveness of the plaintiff's apparatus and such damage won't Occur to a person carrying on ordinary business, the defendant was held not liable for the escape. It was observed that "a man cannot increase the liabilities of his neighbour by applying his own property to special uses, whether for business or pleasure."

(ii) Act of God;

Nichols v. Marsland

Defendant created artificial lakes on his land by damming up a natural stream. The year there was an extraordinary rainfall, heaviest in the human memory, by which the stream and the lakes swelled so much that the embankments constructed for the artificial lakes, which were sufficiently strong for an ordinary rainfall, gave way and the rush af water down the stream washed away the plaintiff's four bridges. The plaintiff brought an action to recover damages for the same. There was found to be no negligence on the part of the defendants. It was held that the defendants were not liable under the rule in Rylands v. Fletcher because the accident in this case had been caused by an act of God

(iii) Consent of the plaintiff;

Carstair v. Taylor the plaintiff hired ground floor of a building from the defendant. The upper floor of the building was occupied by the defendant himself Water stored on the upper floor leaked without any negligence on the part of the defendant and injured the plaintiff's goods on the ground floor. As the water had been stored for the benefit of both the plaintiff and the defendant. the defendant not liable.

(**iv) Act of third party;**

Box v. Jabb, the overflow from the defendant's reservoir was caused by the blocking of a drain by strangers, the defendant was held not liable for that

But this defence won't be applicable when the damage is foreseeable and can be prevented

Northwestern Utilities v. London Guarantee and Accident Co, the appellants were a public utility company carrying gas at a high

pressure. During the construction of sewer by the city authorities, a gas pipe leaked, resulting in fire which destroyed the hotel insured by the respondents Since the operations of the city authorities were conspicuous and the danger to the gas pipes could have been reasonably foreseen and guarded against the failure to do that was considered to be a negligence on the part of the appellants and they were held liable.

(v) Statutory authority.

Green v. Chelsea Waterworks Co. The defendant Co had a statutory duty to maintain continuous supply of water A main belonging to the company burst without any negligence on its part as a consequence of which the plaintiff's premises were flooded with water It was held that the company was not liable as the company was engaged in performing a statutory duty.

Absolute Liability - M.C Mehta v. Union of India (1987)

In **M.C. Mehta v. Union of India**, the Supreme Court was dealing with claims arising from the leakage of oleum gas from one of the units of Shriram Foods and Fertilizers Industries, in the city of Delhi, belonging to Delhi Cloth Mills Ltd. As a consequence of this leakage, it was alleged that one advocate practising in the Tis Hazari Court had died and several others were affected by the same. The action was brought through a writ petition under Article 32 of the Constitution by way of public interest litigation.

The Court had in mind that within a period of one year, this was a second case of large-scale leakage of deadly gas in India, as a year earlier due to the leakage of MIC gas from the Union Carbide plant in Bhopal, more than 3,000 persons had died and lacs of others were subjected to serious diseases of various kinds. If the rule of Strict Liability laid down in Rylands v. Fletcher was applied to such like situations, then those who had established 'hazardous and inherently dangerous' industries in and around thickly populated areas could escape the liability for the havoc caused thereby by pleading some exception to the rule in Rylands v. Fletcher.

For instance, when the escape of "the substance causing damage was due to the act of a stranger, say due to sabotage, there was no liability under that rule.

The Supreme Court took a bold decision holding that it was not bound to follow the 19th century rule of English Law, and it could evolve a rule suitable to the social and economic conditions prevailing in India at the present day. It evolved the rule of 'Absolute Liability' as part of Indian Law in preference to the rule of Strict Liability laid down in Rylands v. Fletcher. It expressly declared that the new rule was not subject to any of the

exceptions under the rule in Rylands v, Fletcher. After laying down the above-mentioned rule, the Court directed that the organizations who had filed the petition may file actions in appropriate Court within a period of 2 months to claim compensation on behalf of the victims of the gas leak.

Bhagwati, C.J., observed in this context: ..... This rule (Rylands v. Fletcher) evolved in the 19th century at a time when all these developments of science and technology had not taken place cannot afford any guidance in evolving any standard of liability consistent with the constitutional norms and the needs of the present-day economy and social structure. We do not feel inhibited by this rule which was evolved in the context of a totally different kind of economy.

Law has to grow in order to satisfy the needs of the fast-changing society and keep abreast with the economic developments taking place in this country. As new situations arise, the law has to be evolved in order to meet the challenge of such new situations. Law cannot allow our judicial thinking to be constrained by reference to the law as it prevails in England or for the matter of that in any other foreign legal order.

We, in India, cannot hold our hands back and I venture to evolve a new principle of liability which English Courts have not done.

The Supreme Court thus evolved a new rule creating absolute liability for the harm caused by dangerous substances as was hitherto not there. The following statement of Bhagwati, C.J., which laid down the new principle may be noted:

We are of the view that an enterprise which is engaged in a hazardous or inherently dangerous industry which poses a potential threat to the health and safety of the persons working in the factory and residing in the surrounding areas owes an absolute and nondelegable duty to the community to ensure that no harm results to anyone on account of hazardous or inherently dangerous activity which it has undertaken. The enterprise must be held to be under an obligation to provide that the hazardous or inherently dangerous activity in which it is engaged must be conducted with the highest standards of safety and if any harm results on account of such activity, the enterprise must be

absolutely liable to compensate for such harm and it should be no answer to the enterprise to say that it had taken all reasonable care and that the harm occurred without any negligence on its part. The rule was summed up in the following words, with the assertion that this rule will not be subject to any of the exceptions recognized under the rule in Rylands v. Fletcher: We would therefore hold that where an enterprise is engaged in a hazardous or inherently dangerous activity and harm results to anyone on account of an accident in the operation of such hazardous or inherently dangerous activity resulting, for example, in the escape of toxic gas, the

enterprise is strictly and absolutely liable to compensate all those who are affected by the accident and such liability is not subject to any of the exceptions which operate vis-a-vis the tortious principle of strict liability under the rule in Rylands v. Fletcher.

The Court gave two reasons justifying the rule:

Firstly, the enterprise carrying on such hazardous and inherently dangerous activity for private profit has a social obligation to compensate those suffering therefrom, and it should absorb such loss as an item of overheads, and

Secondly, the enterprise alone has the resources to discover and guard against such hazards and dangers.

Tortious liability of the State

Earlier in Medieval times there was a saying,

"Res Non-Potest Peccare" I.e. **the king can do no wrong** (as the king was considered the son of God)

But as we evolved in a more equal and just democratic civilization this saying started losing its significance and a question was started being raised,

"What if the Government's employees have done any wrongful act resulting in damage to others?"

Today the Government can be Sued in court for the wrongful acts of its employees.

Article 300 of the Indian Constitution specifies that the union of India or the Government of State can sue and be sued like any ordinary person.

Article 300 gave the right to people to sue the Government. But this article came into effect in 1950 i.e., after the adaptation of the Constitution. Similar provisions are present under Article 176 of the Government of India Act, 1935 and also under Articles 35 and 65 in the Government of India Act 1915 and 1858 respectively.

1. Peninsular and Oriental Steam Navigation Company v. Secretary of State for India

A carriage pulled by a couple of horses was going to Calcutta. An accident took place when the wagon was travelling through the Government's dockyard. Some of the workers of the Government Dockyard were carrying heavy iron rods to repair a steamer However, these workers dropped the Iron rods, the noise of which affected one of the horses of the Plaintiff.

The company filed a suit against the Secretary of State for India to get relief for the damages The Supreme Court of Calcutta held that the Secretary of State is liable for the damages. This case is the first case which brought upon the difference between sovereign and non-sovereign functions of the state. As the maintenance of Dockyard is a non- sovereign function Government was held liable.

Sovereign functions - These are the functions of the state for which the state is not liable under any provision for the wrongful acts of its employees. For example, functions like defence activities, preserving armed forces, maintaining peace and war, diplomacy are some of the sovereign functions for which the state is not liable.

Non-Sovereign functions - These are the functions of the state which are other than the Sovereign Functions.

2. State of v. Vidyawati

This immunity of the state has been discouraged in this case was employed by the State of Rajasthan as a temporary driver for a government car. After the completion of the repairs for car, during his return from the workshop, he knocked down a citizen named Jagdishlal (Plaintiff). Jagdishlal was severely injured and he died subsequently.

The plaintiff's wife (widow) named Vidyawati and her minor through her mother as next friend, sued Lokumal and the State of Rajasthan for the relief.

Supreme Court held that the State was liable to pay the damages incurred as the act of driver was not sovereign function.

Supreme Court said "In this connection, it has to be remembered that under the Constitution, we have established a welfare State, whose functions are not confined only to maintaining law and order, but extend to

engaging in all activities including public State trading to name only few of them. In so far as the State activities have such wide ramifications involving not only the use of sovereign powers but also its powers as employers in so many public sectors, it is too much to claim that the State should be immune from the consequences tortious acts of its employees committed in the course of their employment as such.

3. Kasturilal Ralia Ram State of UP

Plaintiff was arrested by the UP police officers on suspicion having stolen property. On further investigation huge quantity of gold was found and the same was seized by the officials. Finally, he was released, but the gold was not returned to him as the Head Constable in charge of the malkhana absconded with the gold. The Plaintiff then sued the State of UP to return his gold or to pay damages for the same.

Supreme Court said that, it is the negligence of the police officers in dealing with the Plaintiff's property and is violative of the UP Police Regulations.

But the court finally contended that the State is not liable to pay because the police officers acted negligently while they are executing their duty in arresting a person. These powers like arresting a person and seizing property are sovereign powers. The contention of the Supreme Court was based on the statutory power and the act done in exercise of the sovereign function.

Kasturi Lal bypassed- Although the decision of the Supreme Court in Kasturi Lal's case still holds good, for practical purposes its force has been considerably reduced by a number of decisions of the Supreme Court. Without Expressly referring to Kasturi Lal or distinguishing or overruling this case, a deviation from this decision has been made. Under the circumstances in which the State would have been exempted from liability if Kasturi Lal had been followed, the State has been held liable.

The SC recognized the liability of the State to pay compensation, when the right to life and personal liberty under Art. 21 of the Constitution had been violated.

4. Sahell v Commissioner of Police

In this judgement. the ratio in Vidyawati was revisited and upheld by its application. When a child died by police assault and beating the compensation of Rs. 75000 was granted and the Delhi Administration was

allowed to recover the same from the officials which were responsible for the incident.

5. Nilabati Behera v. State of Orissa

Smt. Nilabati Behera, Plaintiff sent a letter to the Supreme Court stating that her 20-year-old son named Suman Behera died under police custody after being severely injured. The Petitioner claimed compensation for the violation of her san's right under Article 2. Police had arrested him for theft and he was detained at a police outpost. On the very next day, his dead body was found near the railway track. The Plaintiff strongly claimed that his death was the result of injuries inflicted by police

The Supreme Court stated that there is no evidence regarding the search by the police for Suman Behera. There could also have been a possibility where the police reached much later to take charge of the body when the police were informed by the railway men. Doctor also attested that the injury on the body of deceased was due to a blunt object which may be a lathi. Finally, the State of Orissa was sued to provide compensation of Rs.150,000 to the petitioner and Rs10,000 to the Supreme Court's Legal Aid Committee. The Supreme Court also ordered the State of Orissa to commence criminal proceedings against the persons who killed Suman Behara.

6. Rudal Shah v State of Bihar

In this case, the petitioner had filed a case against the state for his illegal imprisonment for 14 years and asked for compensation and rehabilitation cost. The question presented before the Apex court was whether the court can award monetary damages under its jurisdiction as given in Article 32 or not.

The court gave the answer in affirmative by stating that monetary damages under article 32 may be granted and thus gave a judgement that proved to be a giant leap in the cases involving both constitutional tort and compensation.

The judgement mutated two landmark rules by holding that:

Civil liability can arise when constitutional rights are violated.

Civil liability can also emerge when there is a violation of personal liberty.